

Country Compliance Report:

Guatemala

Information class: Restricted



Country Compliance Report: Guatemala

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Introduction and document purpose

Pagero Group builds the world's largest, open business network – so you can reach any business, anywhere in the world. No matter how many borders your operations may cross or how many systems you are connected to, we take care of the technical and regulatory requirements across your entire order-to-cash, purchase-to-pay and freight processes. We give you data accuracy and security, transparency and real-time visibility – through a single connection.

At Pagero Group, we believe that technology supports sustainability. That's why we are committed to helping businesses become 100% paperless, supporting resource efficiency, transparency and business continuity.

The main purpose of this country compliance report is to provide the reader with an in-depth analysis of the focus country's laws, regulations, and process with regards to e-invoicing and other trade documents. The analysis considers topics such as business requirements before switching to electronic invoices, e-document creation, e-document distribution, integrity and authenticity, and, finally, e-archiving.

This document guides how Pagero solutions support customers in the focus country to meet local regulations and serves as a supplement to Pagero General E-invoicing Process Description.



1. Terminology

This section outlines general and country-specific terminology for Guatemala, which will be used throughout the whole document.

Term	Explanation
Addenda	Is the additional element of the DTE that allows the trading parties to freely include any additional information agreed by them. Addenda has no fiscal value and must not be sent to the mandatory infrastructure, otherwise the DTE will be automatically rejected by the Tax Authority.
Advanced e-signature (AES)	It is a digital signature based on an advanced certificate uniquely identifying the signer. Pac will apply an AES to the documents that has passed the required validations
Agencia Virtual	Is the name of the website provided by SAT for the issuance of DTEs by small taxpayers. It is also used for validation of the DTEs upon receipt.
Clearance	Where traders are required to send their tax documents, such as invoices, to a predetermined, often, state-owned infrastructure. The infrastructure conducts mandatory checks before the documents are to be considered issued, however, the infrastructure offers no exchange to the receiving party. In Guatemala, clearance is carried out by specially accredited PAC, who thereafter report the DTE to SAT. SAT performs control validation of the cleared DTE's and could reject if received documents do not fulfil the requirement. In practice, SAT rejections do not occur provided that PAC as performed its responsibilities correctly.
Clearance response	Is the response from the clearing infrastructure notifying the issuer whether the e-document has been approved, or rejected. The term is used by Pagero unless there is any country-specific term for this type of responses
Complemento	Is an additional element that defines complementary information of the DTEs that must be incorporated in accordance with the provisions of the FEL Regime and are part of the nodes signed by the issuer.
DTE	Electronic Tax Document in XML format (Documento Tributario Electrónico). It includes but is not limited to invoice.
FEL	Electronic Invoice Regime (Factura Electronica en Linea) that applies to the taxpayers in Guatemala and establishes rules on issuance,

	transmission certification, and archiving of DTE's. Since July 2021, FEL is the only authorized regime to issue electronic documents.
IVA	Value-Added Tax (<i>Impuesto al valor agregado</i>).
PAC	<i>Proveedor Acreditado Certificado</i> . Is an agent that has been accredited by SAT to ensure fiscal validity for every DTE in Guatemala. It can sometimes be referred to as Certificador.
RTU	<i>Registro Tributario Unificado</i> -Tax registration number
SAT	Tax Administration Superintendence (<i>Superintendencia de Administración Tributaria</i>).
UUID	<i>Universally Unique Identifier</i> , containing 32 alphanumeric characters
Validation of DTE	The process of verifying and confirming that a DTE is legally valid. Currently, the validation can be carried out by the receiver manually via SAT webportal "Agencia Virtual".



2. General overview

This section provides an initial introduction into the local e-Invoicing environment within Guatemala, including the types of local e-invoice regulations, go-to governmental and industry bodies, and whether multiple invoicing regimes, that is, varying regulatory requirements, exist for example by industry, business size, or other defining factors.

Item	Commentary
Authorities and other agencies relevant for e-invoicing	• Tax Administration Superintendence (SAT)
Main applicable legislation in respect of e-invoice issuance, exchange, reception and retention	• Directorate Agreement 13-2018 • Directorate Agreement 26-2019 (reforms) • Resolution-SAT-DSI-243-2019 • Resolution-SAT-DSI-838-2019 • Resolution-SAT-DSI-639-2020 • Resolution-SAT-DSI-640-2020 • Resolution-SAT-DSI-887-2020 • Resolution-SAT-DSI-1074-2021 • Resolution-SAT-DSI-1218-2021 • Resolution-SAT-DSI-1240-2021 • Resolution-SAT-DSI-1350-2022 • Governmental Agreement-245-2022 • Resolution-SAT-DSI-31-2022



3. E-Invoice status

When considering sending or receiving e-invoices two basic questions should be considered: is invoice equal to paper invoice from the legal perspective; and if there are any situations where e-Invoicing is mandatory for reception or transmission.

Item	Commentary
E-invoice status	• Mandatory to some taxpayers that have been notified by SAT • Voluntary for the rest of taxpayers
Varying invoicing regimes¹	• Single regime (FEL)
e-Invoicing model	• Delegated Pre-Clearance
e-Invoice definition²	• An invoice that has been issued, certified, and transmitted electronically.
Scope of taxpayers the e-document mandate applies to	• Healthcare providers • Large regional companies • Audit and accountant firms and self-employed • Suppliers to governmental entities • Special Taxpayers • Taxpayers under the FACE e-invoicing model³ • All taxpayers under the general VAT regime (1 July 2022)
Mandatory AoR (document response) process	• No
Implementation / roll-out plan	• Since 4 November 2019 taxpayers have been gradually added to the FEL regime. • From 1 July 2021, the FEL regime is the only authorized mechanism for the issuance of tax documents on a voluntary basis. • From 1 July 2022 all taxpayers under the general VAT regime will have to join the FEL regime. • Small taxpayers from March 31, 2023 (those belonging to the Small Taxpayer Regime)

¹ It is possible that a business is required to send e-invoice in some scenarios, and send voluntarily in others

² Differing definitions may exist between different levels of government, or differing legislation, i.e. accounting law and IT law

³ FACE is the old e-invoicing regime initiated in 2011. Taxpayers operating under that e-invoicing regime had to migrate to the new FEL regime before 31 December 2020. Therefore, FACE regime is not in place anymore



4. Before switching to e-invoices

4.1. IT⁴ registration

The following thresholds apply to the requirement to be registered for a IT number (local name, RTU) in Guatemala:

- The VAT law in Guatemala does not contain any provision for exemption from registration.
- Taxable persons whose annual turnover does not exceed GTQ 150.000 (approx. USD 19.380) may elect to be taxed under a simplified VAT (5%) regime.

Guatemalan IT number format: 8359788-3

4.2. Process to switch to e-Invoicing

Even though many countries encourage or even mandate e-Invoicing, there may be specific requirements on the Trading parties – typically the Supplier – before starting an e-Invoicing program. This section provides a brief overview of such requirements.

Item	Commentary
Actions towards authorities, required in order to enable electronic processing instead of conventional processing	• The taxpayer needs to be accredited by SAT. The taxpayer needs to apply on SAT webpage "<i>Habilitarse como emisor</i>" and fulfil the following requirements: • Be registered in the tax registry and have RTU • Possess at least one active establishment • Being VAT registered • Not have any remarks in the Tax declaration • Verified address
Actions between the trading partners, e.g. customer acceptance, agreement, etc.	• The recipient must be able to process the DTE format, otherwise, the sender is obliged to provide a human-readable presentation.
Transition period from the moment of starting e-invoicing during which, e.g. parallel invoicing may be allowed	• No explicit regulations

⁴ For the purpose of this document, IT refers to Indirect Tax, including, but not limited to Value-Added Tax (VAT), Goods and Sales Tax (GST), Sales tax, etc.

4.3. Outsourcing invoice issuance function

Many companies decide to outsource the issuance process of e-invoicing to third parties who have the necessary infrastructure and knowledge of implementing and executing e-Invoicing. This may be driven by a technical limitation or local regulatory requirements. However, before doing so, it is highly recommended that a supplier investigates whether such outsourcing is permissible and whether any requirements must be fulfilled.

Item	Commentary
Whether outsourcing of invoice issuance (creation) is allowed or not	Only technical (not legal) issuance outsourcing is allowed
Whether statement of outsourced issuance is required on the invoice	Not explicitly required
Whether outsourcing agreement is required between the taxpayer and the third-party is performing actions on its behalf	Yes, there must be documented agreement with each PAC.
Content and formality requirements to the Outsourcing agreement between the taxpayer and the third-party	At least, a service level agreement
Whether any notifications to or derogations from authorities are required in the specific jurisdiction for outsourced issuance	The taxpayer must declare in SAT, which PAC will be used to clear DTE's
Whether, and which, requirements exist to the outsourced party to be able to act on behalf of the taxpayer	- PAC must pass the certification process with SAT, invoicing compliance of a series of requirements, which aim both at the required technology and the data security processes. - One of the significant aspects is the protection of the three e- signature components: the certificate, the key of the certificate, and the related password.

4.4. Outsourcing invoice receipt function

Due to the unique nature of the AP process, it may be required for the buyer (invoice receiver) to have an explicit agreement, or other permissions to be put in place for Service Providers to conduct invoice receiving functions on behalf of them.

Guatemala has no explicit requirements on the outsourcing of the function of receiving invoices (similar to the function to issue invoices as outlined above).



5. Document processing

5.1. Format and other technical requirements

Globally, a multitude of e-Invoicing formats and infrastructures exist. Local regulators often offer or mandate the use of certain formats, standards, or platforms for the transmission or delivery of invoices or other tax-related documents. Pagero has the technical depth and experience to support country-specific technical requirements globally.

Item	Commentary
Mandated document format(s) for exchange with mandated Gov platform(s) and/or between the trading parties	• (Local) XML is mandatory for communication between the taxpayer and PAC and between PAC and SAT respectively. Click here to see the specific format (page 7)
Other document format(s) commonly used for exchange between trading parties	• Not regulated, i.e. the taxpayer may exchange XML, PDF or even paper
Mandated platform(s) required to have connection with for e-document processing	• PAC for automated processing API connectivity (page 15) • "Agencia Virtual" of SAT, for manual DTE processing
Other platform(s) relevant for e-document processing	• N.a.
Schematron(s), XSD schema or other official mechanisms ensuring document content	• Depending on the sector or DTE type, SAT requires specific additional information, <i>Complemento</i>
Routing ID's / codes or other identifiers used in the jurisdiction for counter-party identification and document exchange	• Taxpayers have to register their e-mail address and telephone number in SAT for this purpose
Other technical aspects	• DTE allows additional information to be provided as <i>Addenda</i> • Here the complete list of accredited PAC's

5.2. Communication with PAC or SAT

Regulations in Guatemala foresee the following options on how e-documents can be communicated with the mandatory infrastructure(s):

Communication options	Commentary
Automated	• Taxpayers can purchase a software in the market to handle DTE or they can develop their own software, which will interact with the mandatory infrastructure via web services. • Such software will be interacting with PAC, to enable automated DTE processing. • Thereafter, PAC will send to SAT the DTE on behalf of the taxpayer.
Manual	• <i>Agencia Virtual</i>: This is a free of charge solution provided by the SAT to small and medium businesses for manual clearance and validation of the DTE's. The taxpayer must have a valid e-certificate in order to use this service for DTE creation. • Steps on how to request a username for Agencia Virtual
Other options	• N.a.

5.3. Issuance and clearance process

This section describes the document issuance and clearance process from the supplier perspective.

5.3.1. Domestic DTE's

This section describes the process for documents created to be transmitted within the given country:

- 1) **The supplier**, will create dataset per DTE mandatory content in the mandated XML format, which is digitally signed with the certificate and send it to PAC.
 - a. The supplier can connect with PAC either directly or via an intermediary
 - b. The supplier is not required to use a single PAC for all their DTE's, i.e. they may have multiple PAC's e.g. for different DTE types
- 2) **The PAC**, upon reception of the DTE document, will validate (clear) it within 3 seconds and:
 - a. **If successful**, applies UUID, e-signature and it will send a new e-invoice (certified) both to the supplier and SAT in the mandatory XML format.
 - i. At this stage, the supplier can already exchange the DTE with the buyer even though the clearance by SAT (step 3 below), has not yet been completed
 - b. **If unsuccessful**, reject the invoice back to the supplier specifying the rejection reason. A rejected DTE does not obtain fiscal value and is therefore invalid.

- 3) **The SAT⁵**, upon reception of the DTE, will carry out technical validations and send a response to the PAC (1-4 seconds):
 - a. **If successful**, the DTE obtains full tax validity. PAC is not required to send the positive response back to the supplier as the DTE is supposed to fulfill all the requirements after clearance from PAC. However, PAC will have to archive the response from SAT along with the DTE.
 - b. **If unsuccessful**, the DTE does not obtain tax validity. There may have been inconsistencies with the e-signature or some arithmetic calculation. PAC will have to communicate the negative response (specifying rejection reason(s)) to the supplier and SAT will indicate in the web portal "Agencia Virtual" the reasons why DTE was not processed. PAC will also have to archive the negative response from SAT.
 - i. If the DTE has not been distributed to the buyer, then the supplier has to amend the errors from the DTE and resubmit it again to PAC with the same document number. As the primary validations response from SAT is sent, typically, within 4 seconds, the DTE may not have been exchanged yet with the buyer.
 - ii. If the DTE has been already exchanged with the buyer, then the supplier must notify the buyer that the DTE is not fiscally valid. The supplier will not create a credit note as the DTE was never fiscally valid. The buyer would be aware of this by verifying the document from the SAT web portal. Once again, the supplier will amend the errors from the invoice and send it to PAC and the buyer afterward.
 - iii. Not passing SAT validations can incur penalty fees to the PAC and the taxpayer (that is why most, if not all, validations by PAC's are correct from the very beginning).
- 4) **The supplier**, will then distribute the DTE to the buyer, either directly or to its service provider:
 - a. **The supplier may distribute the DTE already after it has been cleared by PAC**, i.e. the supplier does not have to wait for response from SAT (the distributed DTE will not contain SAT response). If PAC has performed its clearance actions properly, it happens rarely that SAT would reject such DTE.
 - b. The DTE will be distributed in the mandatory XML format. In case the buyer is not capable of processing the XML, then the supplier must provide along with the XML, a human-readable presentation of the DTE with a QR code on it.
 - c. Generally, DTE is distributed by e-mail.

The buyer, upon reception of the DTE, may optionally validate it through "Agencia Virtual" webportal. Any taxpayer incorporated or not into the FEL regime is able to validate the DTE.

⁵ Step #3 and #4 may happen simultaneously, i.e. the supplier is not required to await SAT in order to exchange the e-invoice.

5.3.2. Cross-Border

This section describes the requirements for cross-border outbound documents such as sales invoices.

An invoice issued by a local Guatemalan supplier for export of goods must comply with local requirements to successfully complete the invoice clearance process. The DTE must contain “complemento exportaciones”. Such Guatemalan invoice will often be used by the foreign buyer as a pro-forma invoice.

The export DTE issuance process is exactly the same as for domestic transactions. The DTE should be issued with “complemento exportaciones” and cleared with PAC. Once, PAC has certified the invoice, The supplier will be able to exchange the document with the buyer. PAC will also send the invoice to SAT for tax validation.

More details and the technical documentation about the Complemento for International Commerce can be found at the tax authority's web site: [9. Complemento schema for Exports](#)

Apart from that, exports must also include customs documents that evidence and explain the outbound process.

5.4. Reception and validation process

This section describes the document reception, validation and acceptance processes from the buyer perspective.

5.4.1. Domestic documents

This section describes the process for documents received for purchases or transactions within the given country

In Guatemala, the buyer has the possibility to validate the DTE with SAT. Even though not mandatory to do so, it is recommended to verify the authenticity of the DTE. SAT currently offers a single option for the validation: Manually via “*Agencia Virtual*” by keying information about the received DTE. The answer will be:

- a) Found and valid, i.e. DTE is fiscally valid,
- b) Found and cancelled, i.e. DTE is fiscally valid, but has been cancelled or annulled,
- c) Rejected or not found, i.e. DTE is fiscally not valid.

5.4.2. Cross-Border

In Guatemala, there are no explicit regulations on import invoices. Such invoices are not required to be cleared or reported to the SAT. The trading parties are allowed to exchange import invoices directly with each other in the way and form they have agreed.

5.5. AoR (response) process

The buyer acceptance process is not regulated in Guatemala.

5.6. PAC and SAT validations

Some tax regimes require businesses to send tax documents to a predetermined hub either before, shortly after issuing invoices. Generally, a hub that requires this will send a reply to the issuer. This reply can be expressed as a clearance/ approval response, rejection, semi approved, etc.

PAC must ensure that the DTE issuer applied the current rules and validations. PAC performs more than 60 different validations.

If rejected:

- The DTE fails to meet the established conditions.
- A message to the issuer will include error codes indicating the reason for the rejection.

If approved, PAC will:

- Apply the UUID
- Applies advanced electronic signature
- Archive the DTE in its database
- Sends back the certified DTE to the issuer
- Sends the certified DTE to the SAT.

SAT will perform the necessary verifications to determine that all established rules and validations have been applied. For this, SAT performs two different validations upon DTE receipt:

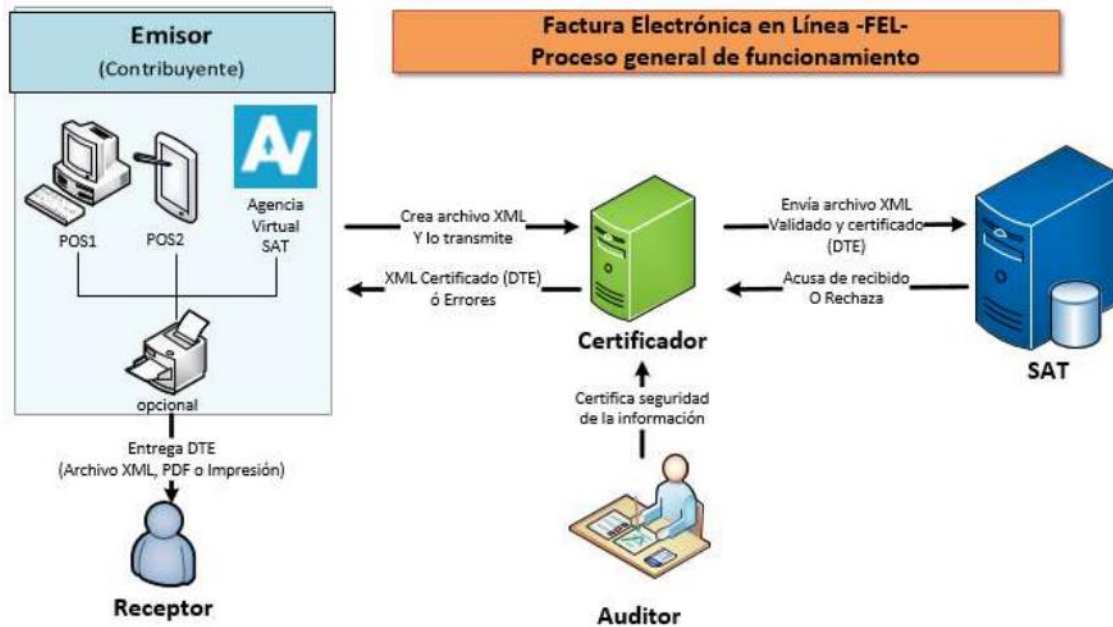
First validation, which is strictly technical, SAT will notify PAC immediately⁶ with the following DTE statuses:

- **Accepted:** If the DTE fulfils the required validations, in which case the document obtains the full tax validity. The PAC has to store this response along with the DTE.
- **Rejected:** If the DTE fails to meet the established conditions. In this case, the DTE does not obtain the tax validity. SAT will indicate in the web portal "*Agencia Virtual*" why the XML submitted was not processed. This is the only scenario when SAT allows resubmission of DTE with the same serial number. The PAC has to store this response along with the DTE.

It is very unlikely that the SAT will reject the DTE while carrying the validation.

⁶ Within 1-4 seconds

Secondary validations are those business rules derived from tax regulations. The result of all the validations applied to all the documents that have not been rejected may be consulted by the Issuers and recipients so that they can take corrective measures following the applicable regulations.



5.7. Invoice presentation / copy

Some regimes require a visual presentation of the invoice file to be transmitted along with the structured invoice file. This section describes if there is any regulation concerning visual or image-based presentations of invoices as a copy for the original or vice versa.

In Guatemala, the supplier must provide DTE to the buyer in the original XML format. In addition to that, the buyer can request a graphic representation of the DTE to be delivered too. In practice, the DTE is delivered in XML format and a graphic representation of that DTE which is in PDF format. The XML will always be considered the legal tax valid invoice and the PDF will be a DTE presentation. In case a human-readable version is delivered to the buyer, it needs to have a QR code on it so that the buyer can validate it with the Tax Authority by scanning the QR code. The human-readable format must also contain the wording "Documento Tributario Electrónico" and there is no need to add the wording "copy". As only the XML format is treated as a tax document, the human-readable will always be treated as a copy.

5.8. Distribution between taxpayers

This section explains how and if trading parties can send invoices between each other. In some cases, hubs also distribute the tax document to the buyer.

According to the Guatemalan regulations, the DTE must be exchanged⁷ between the trading parties in the following way:

- The original format in XML. In addition,
- Digital Human readable format. Which contains the word “Documento Tributario Electrónico” (Electronic Tax Document) and a QR code, or
- In paper format, which also contains the word “Documento Tributario Electrónico” and the QR code.

As noted above, it is not mandatory to distribute the Human-readable representation of the DTE. This is, however, the common practice carried out via e-mail.

5.9. Rectification process

This section will express the process that needs to be taken when there is an error in an invoice, how it is to be handled, and corrected by both buyer, seller, and if a notification needs to be delivered to the tax authority.

Invoice cancellation

It is possible to cancel a DTE invoice either because of the cancelation of the transaction or because the DTE was issued with business or commercial errors.

The issuer who wants to cancel the DTE, must notify it to the relevant PAC on the available service or application provided by PAC. PAC will then report immediately the cancellation of the DTE to the SAT through the cancellation API that the SAT will make available to the PAC.

The cancellation is carried out by an operation external to the DTE and in no case will it modify an already certified DTE, it only consists of an attachment linked to the DTE that is canceled.

Credit/debit note issuance

In the rectification scenario, an alternative process would be to issue a credit/debit note.

Rectification process	
What are the options to correct an invoice if an incorrect IT rate, exemption or reverse charge is applied on the invoice	• Credit or debit note • In the case of reductions to the tax credit, if the operation takes more than two months, a credit note must be issued.
What are the options to correct an invoice if the customer returns the goods	• Credit note
What are the options to correct an invoice if the customer paid too much	• Other • It would be enough to return the money. As well as having the documentation that evidences that in effect it corresponds to an overpayment.

⁷ DTE may be distributed after PAC clearance, even though the DTE has not obtain full tax validity from SAT yet.

What are the options to correct an invoice if the supplier agrees to a discount after the invoice was issued to the customer	• Credit note
What are the options to correct an invoice if the invoice misses data such as name, address, IT number, invoice reference, etc.	• Credit note
Other scenarios with different correction option	• If the operation to be corrected or cancelled corresponds to the current month, it is possible to cancel the invoice, without issuing a credit note.
Party entitled to issue a credit note if the invoice was issued by the supplier (i.e. no self-billing)	• Supplier
Allowed to draft a 'waiting' document/interim document' in the absence of a purchase invoice and report IT as due and deductible on the basis of this document	• No

5.10. Coexistence of paper and electronic invoices

Item	Commentary
Whether parallel invoicing (issuance and exchange of the same document in several formats, e.g. electronically and on paper) is allowed and/or whether there are any regulations surrounding it	• Not allowed
Whether the jurisdiction allows for document (e.g. invoice) dematerialization, i.e. destruction of the original paper invoice, for processing and/or archiving	• Not allowed
Whether any conditions apply, and which, to the dematerialisation	• N.a.
Whether the jurisdiction allows for document (e.g. invoice) materialization, i.e. destruction of the original electronic document, for processing and/or archiving	• Not allowed
Whether any conditions apply, and which, to the materialisation	• N.a.

5.11. Contingency invoicing

This refers to the process for e-invoicing if any mandatory infrastructure is inaccessible. If temporary measures are available, or allowed, to facilitate invoicing during the downtime.

- In case of problems with connectivity with PAC, the taxpayer can issue its documents through the web portal. The use of the web portal that SAT offers to all the taxpayers is free of charge -*Agencia Virtual*-.
- In case of connectivity problems with the web portal:
 - The document must be generated from the issuer billing software in an XML format.
 - The issuer must send the document to the buyer. It must contain the text "*Emision en contingencia, obtenga su DTE certificado en el sitio www.sat.gob.gt/fel*"
 - It must also include a QR code that redirects the recipient to the SAT validator web portal.
 - At the end of the contingency period, the issuer will have to communicate to SAT the contingency period, the reason for contingency and the quantity of document issued in that period. This can be done from the web portal or by sending an email to efactura@sat.gob.gt



6. Document content requirements

6.1. Document types

Item	Commentary
DTEs mandatory for issuance by supplier	• Factura <i>FACT</i> Document that taxpayers subject to VAT are obliged to issue and deliver to the purchaser. • Nota de Débito <i>NDEB</i> Document used for price increases or surcharges on operations already billed. • Nota de Crédito <i>NCRE</i> Document used for returns, cancellations or discounts on operations already invoiced. ○ Factura Cambiaria <i>FESP</i> Document issued by a commodity reseller ○ Factura Pequeño Contribuyente <i>FPEQ</i> Document issued by a taxpayer affiliated to the Small Taxpayer Regime ○ Factura Cambiaria Pequeño Contribuyente <i>FCAP</i> Document issued by a commodity reseller affiliated to the Small Taxpayer Regime ○ Factura Especial <i>FESP</i> Document issued by the buyer on behalf of the seller ○ Nota de Abono <i>NABN</i> Document issued by intermediaries of agricultural products, handicrafts, or recycled products, destined to export, for purchases from people not registered with the SAT ○ Recibo <i>RECI</i> Document issued by associations, foundations and educational institutions, or social service and religious and others, by the exempt services they provide ○ Factura Contribuyente Agropecuario <i>FACA</i> Document issued by a taxpayer affiliated to the Special Agricultural Regime ○ Factura Cambiaria Contribuyente Agropecuario <i>FCCA</i> Document issued by commodity reseller affiliated to the Special Agricultural Regime ○ Factura Pequeño Contribuyente Régimen Electrónico <i>FAPE</i> Document issued by a taxpayer affiliated to the small taxpayer Electronic Regime

	○ Factura Cambiaria Pequeño Contribuyente Régimen Electrónico <i>FCPE</i> Document issued by a commodity reseller affiliated to the Small Taxpayer Electronic Regime ○ Factura Contribuyente Agropecuario Régimen Electrónico Especial <i>FAAE</i> Document issued by a taxpayer affiliated to the Special taxpayer Agricultural Electronic Regime ○ Factura Cambiaria Contribuyente Agropecuario Régimen Electrónico Especial <i>FCAE</i> Document issued by a commodity reseller affiliated to the Special taxpayer Agricultural Electronic Regime ○ Recibo por donación <i>RDON</i> Document issued by non-state entities to accredit the receiving donations
DTEs mandatory for issuance by buyer	• N.a.

Item	Commentary
Self-billing allowed	• Not allowed, unless: • Taxpayers are able to issue "Factura Especial" if the providers are local individuals who do not issue Tax invoices
Simplified invoice allowed	• Not allowed

6.2. Document numbering

This section outlines the requirements to the sequential numbering of invoices and, where applicable, other documents.

6.2.1. Document numbering by the taxpayer

Item	Commentary
A sequential number, based on one or more series, which uniquely identifies the invoice	• Yes
Different series of sequential numbers allowed (e.g. a separate sequential numbering for intercompany billings, credit notes, etc.)	• Yes
Allowed to start a new sequential numbering every year	• Yes
Worldwide numbering on legal entity level allowed provided that gaps can be explained	• No, numbering required per registration
Required that the numbers follow the date of issuance (i.e. is it true that an invoice with number 2 cannot have an invoice date older than the invoice with number 1)	• Yes

6.2.2. Additional document numbering

This section should outline any additional numbering, e.g. provided in addition by the tax authority or that must be generated by the taxpayer based on specific specifications.

The PAC (accredited service provider) will assign a UUID to every tax document that has been approved.

6.3. Indirect tax (IT)⁸ rates

This section illustrates the applied IT⁹ rates and provides a non-exhaustive list with examples of goods and/or services that fall within specific IT rates. IT rates that differ between different administrative units are clearly outlined.

Indirect tax rates		
12%	Standard	All other taxable goods and services.
5%	Reduced	Small taxpayers with an annual turnover of less than GTQ150,000 (approx. USD19,380). Taxpayers duly registered under the Regime for Agricultural Contributions when annual sales do not exceed GTQ3 million (approx. USD380,000).
0%	Zero	Export of goods and services.
0%	Exempt	Transfer of assets in a merger; In-kind contributions of movable property to a legal entity; In-kind contributions of immovable property if the property had not been previously contributed to a real estate entity; supplies by cooperatives to their members; Low-value retail sales of meat, fish, seafood or shellfish, fresh fruits and vegetables, cereals and basic grains in cantonal and municipal markets (max GTQ100); Certain financial services; Education; Certain insurance and reinsurance transactions.

6.4. Mandatory IT invoice content

The section below illustrates the minimum legal requirements related to the content of invoices issued according primarily to the indirect tax regulations of Guatemala. Please note that other additional content requirements might apply in addition, i.a. of technical character.

General	
Required to mention the word "invoice"	• Yes
Required that the invoice is issued in the language of the country who is entitled to impose the invoice requirements:	• No, but translation will probably be requested at the time of a review by the Tax Administration. The official language is Spanish
Sequential numbering	• Yes, see section 6.2 above

⁸ For the purpose of this document, IT refers to Indirect Tax, including, but not limited to Value-Added Tax (VAT), Goods and Sales Tax (GST), Sales tax, etc.

⁹ Local name: Impuesto al valor agregado (IVA)

Required to mention copy or duplicate in case a copy is issued	• No need if it's a copy of the XML on PDF or paper
Reference in case of outsourced issuance	• Yes

Supplier data	
Full legal name of the supplier	• Yes
Allowed to abbreviate or shorten the legal name of the supplier	• No
Full address of the supplier in country of establishment	• Yes
Allowed to mention the PO box address instead of the legal address of the supplier	• No
IT identification number/sales tax number from the supplier in the country where the supply takes place for IT purposes	• Yes, if a registration is available in the country of supply
IT identification number of the supplier in the country of establishment	• Yes
Information (i.e. name, address, IT number) of the fiscal representative of the supplier (if appointed)	• Yes
Legal form of the supplier	• Yes
Trade register number of the supplier	• No
Company Registry data of the supplier (e.g. court registration, address of chamber of commerce)	• No
Place of legal seat of the supplier (Headquarters)	• No
Other supplier data	• No

Customer data	
Full legal name of the customer	• Yes
Allowed to abbreviate or shorten the legal name of the customer	• No
Address of the customer in country of establishment	• Yes
Bill-to address when it is different from the registered address of the customer	• No
Allowed to address the invoice to a Post Office Box address instead of the legal address of the customer	• Yes, provided the legal address too
IT identification number in the country where the supply takes place for IT purposes in case of domestic supplies (if available)	• Yes

IT identification number of the customer in the country of dispatch for invoices issued for exempt export supplies	• Yes, if available
IT identification number of the customer in another Member than the Member State of dispatch for intra-Community supplies	• Yes
Information (i.e. name, address, IT identification number) of the fiscal representative (if customer has appointed a fiscal representative)	• No
Other customer data	• The word “Consumidor Final” or “CF” must be included if the customer does not have RUT (tax registry number) or does not provide it.

Transaction data	
Date of issue	• Yes. Date, exact time and time zone.
Date of supply (chargeable event)	• No
Date of prepayment	• No
Description of the goods/services	• Yes. Detailed descriptions of the goods/services are required
Quantity of the goods supplied or the extent of the services supplied	• Yes
Purchase order number	• No
Shipped from location (for the supply of goods)	• No, but recommended • Especially in case of cross-border transactions
Shipped to location (for the supply of goods)	• No, but recommended • Especially in case of cross-border transactions
Status of the goods (e.g. in bond, in free circulation)	• No
Incoterms	• No
Other information on the supplied goods/services required (except in case of intra-Community supply of new means of transport)	• No

Financial data	
Taxable base per item (unit price excl. IT)	• No
Total taxable base per IT rate or exemption	• No
IT rate applied	• No. It must include total price including tax
Total IT amount calculated per rate	• No
Total IT amount payable	• No

Discounts/rebates if not included in the unit price	• Yes
Total gross amount (including IT)	• Yes
Mandatory to mention the total IT amount due in the national currency	• No. GTQ or USD are allowed.
Which other amounts (i.e. none, only the total IT amount) must be mentioned in the national currency of your country	• N.a.
Exchange rate (if the invoice is not issued in the local currency)	• Yes. • In case of an invoice in USD, the invoice must show the exchange rate used on the date of the transaction, issued by the Guatemalan Central Bank.
Which exchange rate must be applied in order of priority	• Only the daily exchange rate issued by the Bank of Guatemala.
Terms of payment	• No
IBAN and BIC number of supplier	• No

Specific references for invoices	
Invoice reference in case of IT exemption or reverse charge	• Yes
List the required references in case of exemption or reverse charge	• The regulation only states that it must indicate that it does not generate a tax credit.
Allowed to refer to the appropriate provision in Directive 2006/112/EC for: - "reverse charge" for supplies subject to a reverse charge mechanism; - "supply is taxable in the country of the recipient" for B2B supplies of services; - "exempt intra-Community supply - article 138 VAT Directive"; - "Exempt export - article 146 VAT Directive"; - "simplification for triangular sales - article 141 VAT Directive - "Transfer of own goods- article 17 VAT Directive"?	• N.a.
Required to specifically mention 'margin scheme - travel agencies', 'margin scheme - second hands goods', if applicable	• No
Reference required if the transaction takes place outside the EU as a result of the Use and enjoyment provisions	• N.a.
Specific other reference required, e.g. in case of barter transaction, prepayments, etc. (not self-billing or special margin schemes)	• As appropriate to each type of document, in accordance with current legislation, the following sentences should be included: ➤ It does not generate the right to a tax credit.

	➤ Direct Payment, resolution number and date. ➤ Subject to quarterly payments. ➤ Subject to definitive retention
Specific references required in case invoicing is outsourced	• No
Reference to 'cash accounting scheme' in B2B sales in case the IT is due by the supplier upon receipt of the payment/IT is deductible by the customer upon payment	• Yes. In the sale of movable property, invoices, debit notes and credit notes must be issued and provided to the acquirer or buyer, at the time of the actual delivery of the goods. • In the case of the provision of services, they must be issued at the same time the remuneration is received.
Other specific requirements/references to be mentioned on an invoice	• No

6.5. Simplified invoice

The Supplier is not always obliged to issue a complete invoice. In certain scenarios, they may be able to issue a so-called simplified invoice.

Simplified invoicing	
Possible to issue simplified invoices for certain supplies	• Not allowed
Maximum amount for simplified invoices	• N.a.
Other supplies for which a simplified invoice can be issued	• N.a.
Simplified invoices limited to certain type of supplies	• N.a.
Simplified invoices not allowed for certain transactions	• N.a.
Minimum content requirements on a simplified invoice	• N.a.
Invoices subject to the national invoice requirements (not self-bills)	• N.a.

(other) Invoices subject to the national invoice requirements (not self-bills)	N.a.
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Pagero Online does not support the creation of simplified invoices as they typically do not correspond to the business requirements of Buyers.

6.6. Rectification document

In Guatemala, a credit note must be issued as rectification documents. A credit note should include at least the following information:

Specific references for rectification documents	
Must the word "credit note" be mentioned	Yes
Reference to original invoice required on a credit note	Invoice number and date.
Clear indication required that the amount mentioned on the credit note is crediting earlier amount (e.g. minus sign '-')	No
Reason for credit required	Yes

Sequential numbering	
Separate sequential credit note numbering required	Yes, only if it is paper
Allowed to issue one credit note to correct different invoices	Not allowed

Pagero Online creates corrective invoices according to the content requirements of the Complete invoice.

6.7. Optional content

This section outlines briefly whether and how the trading parties can provide additional content in the technical e-document format mandated or otherwise prescribed in the specific jurisdiction.

Complemento: These are XML schemas that contain elements that define complementary information of the DTEs that must be incorporated in accordance with the provisions of the FEL Regime and are part of the nodes signed by the issuer. When they exist, the complements must be sent with the invoice to the SAT. SAT will verify and can reject or report an error if a required complement is not sent.

Addenda: There is the option to include relevant information for the buyer or supplier in the XML DTE. This information is not part of the tax document (DTE), and it is not signed electronically. Therefore, whether having Addenda or not in the invoice, does not alter the ultimate validation of the DTE. Note that this Addenda element must not be sent to the SAT, otherwise the DTE will be rejected.



7. Integrity and Authenticity

Ensuring the integrity of the content, as well as the authenticity of the origin (I&A) of an invoice, is an obligation for both the Supplier and the Recipient.

The purpose of this section is to further clarify the local I&A requirements on B2B invoices, as well as outline whether different requirements apply to B2G invoices. The review is done both from the Supplier's and the Recipient's perspective, as varying rules may apply.

Item	Supplier	Recipient
Whether it is mandatory to ensure I&A in the jurisdiction	• Required	• Not required
Which methods for ensuing I&A are provisioned for	• E-signature with digital certificate of the taxpayer (previously given by SAT), when submitting to PAC. • E-signature with digital certificate of the PAC, when submitting to SAT.	• N.a.
Which requirements apply for I&A methods if ensured by a third-party (outsourcing)	• Not required to notify SAT about the used service provider (if any) • It is required to notify to SAT of the contracted PAC(s)	• There is no explicit requirement for the buyer to validate the supplier signature

7.1. e-Signature

Even where e-signature is not an explicit requirement, Pagero recommends that our customers apply it as, globally, it is the most widely accepted legal means of ensuring I&A for business transactions.

In practical terms, this results in the same evidential position for eDocuments as for paper documents. This unique feature of e-signature provides an exceptional level of legal certainty.

Item	Commentary
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e-Signature technical requirements	• Supplier: AdES with a digital certificate provided by SAT to the taxpayer. • PAC: AdES with PAC digital certificate
Automated e-signing	• Allowed
Time-stamping of e-signature	• No explicit additional requirements

7.2. e-Signature validation

The Recipient of an invoice is often required by law or practice to validate the e-signature on the received invoice. Even for countries where the validation-upon-receipt is not expressly regulated, this is recommended by Pagero for both trading partners to be able to guarantee I&A.

E-signature validation by the receiving party is not regulated in Guatemala. However, the buyer can verify the issuer and download the invoice content from SAT webportal "Agencia Virtual".



8. Document retention

This section describes archiving requirements regarding the invoicing process and documents handled by Pagero. Please note, additional archiving requirements may apply to your specific documents.

Item	Commentary
Components to be stored (e.g. tax invoice, source documents, audit trail, I&A proof)	• Certified DTE from PAC in XML format, which is the document distributed with the buyer. • The source file is recommended to be stored to provide a reliable audit trail • <i>Clearance response from SAT (positive or negative) needs to be archived by PAC, but not by the taxpayer.</i>
Requirements to present stored documents in a specific audit format	• No explicit requirements
Legibility, i.e. the ability to read stored e-documents by an untrained eye	• Required
Legibility requirements	• The supplier must provide a printed readable presentation of the DTE if required by the buyer
Retention period for invoices not related to immovable property¹⁰	• 4 years
Start point of retention period calculation for invoices not related to immovable property	• From the date on which the tax declaration supported by the documents was, or should have been, presented to the SAT (the date of issue and accounting record).
Retention period for e- invoices related to immovable property	• N.a.
Start point of retention period calculation for invoices related to immovable property	• N.a.

¹⁰ Pagero stores all documents for 90 days due to data privacy and security regulations, after which the data is automatically deleted, unless Archive has been selected. Pagero provides long term archiving (for the legally required term, plus one year)

Retention period for other than regular invoices or invoices related to immovable property (if existing):	• N.a.
Start point of retention period calculation for other than regular invoices or invoices related to immovable property:	• N.a.
Outsourced archiving	• Not explicitly regulated
Archiving abroad¹¹ and conditions, if any (e.g. notification, derogation, online access, mutual tax assistance treaty)	• Allowed if there is remote access to the data.
Other requirements in relation to electronic document retention	• Invoices must be printable from the archive upon request

¹¹ In certain situations or jurisdictions deviating requirements – typically regarding archiving abroad – may apply to invoices and related documents, e.g. concerning matters of defence and national security. Therefore, Pagero encourages customers to inquire for and receive an explicit written statement from the local tax authority stating that the archiving of such documents outside of the taxpayer's country is permitted. Pagero in a capacity of a third-party may not apply for derogations or clarifications of this nature on behalf of a taxpayer.



9. Other transactional documents

Along with invoices, countries may have regulations relating to other trading documents. The purpose of this section is to provide a selective (not exhaustive) overview of the regulation of other transaction-related documents of importance.

Document	Commentary
Purchase order	• No explicit requirements
Rectification document	• Yes, see section 6.6 above
Payment instruction	• No explicit requirements
SAF-T (or alike) reporting	• No explicit requirements
Transportation documents	• No explicit requirements
Other	• No explicit requirements



10. Other requirements

This section highlights certain aspects of the local regulations and infrastructure that differ from Pagero's General invoice processing and our standard country compliance investigation.

10.1. VAT returns

In order to get the VAT return, electronic filling is mandatory in Guatemala. The accumulated credit can be requested as long as long as the taxpayer fulfills one of the following conditions:

- Export more than 50% of the generated sales
- Sell to exempt individual/subjects

SAT provides an online webpage "*Declaraguate*" so that taxpayers can prepared and filed the required forms electronically (<https://declaraguate.sat.gob.gt/declaraguate-web>). These files have to be reported on a monthly basis within the month that follows the expiration of each tax period.

VAT returns: Taxpayers need to fill the Form SAT-2237 file. VAT due will be paid fully by the end of the next month (tax period). VAT due from real state and vehicle supplies has to be paid within the next 15 days following the date of the transaction.

Generated VAT: Taxpayers need to fill the Form SAT-2085 file.

After filling the tax return, taxpayers can make the payment through "BancaSAT" (online banking system tool) or either depositing the money physically on any authorized bank.

As the VAT returns are submitted every month, annual returns are not required in Guatemala.

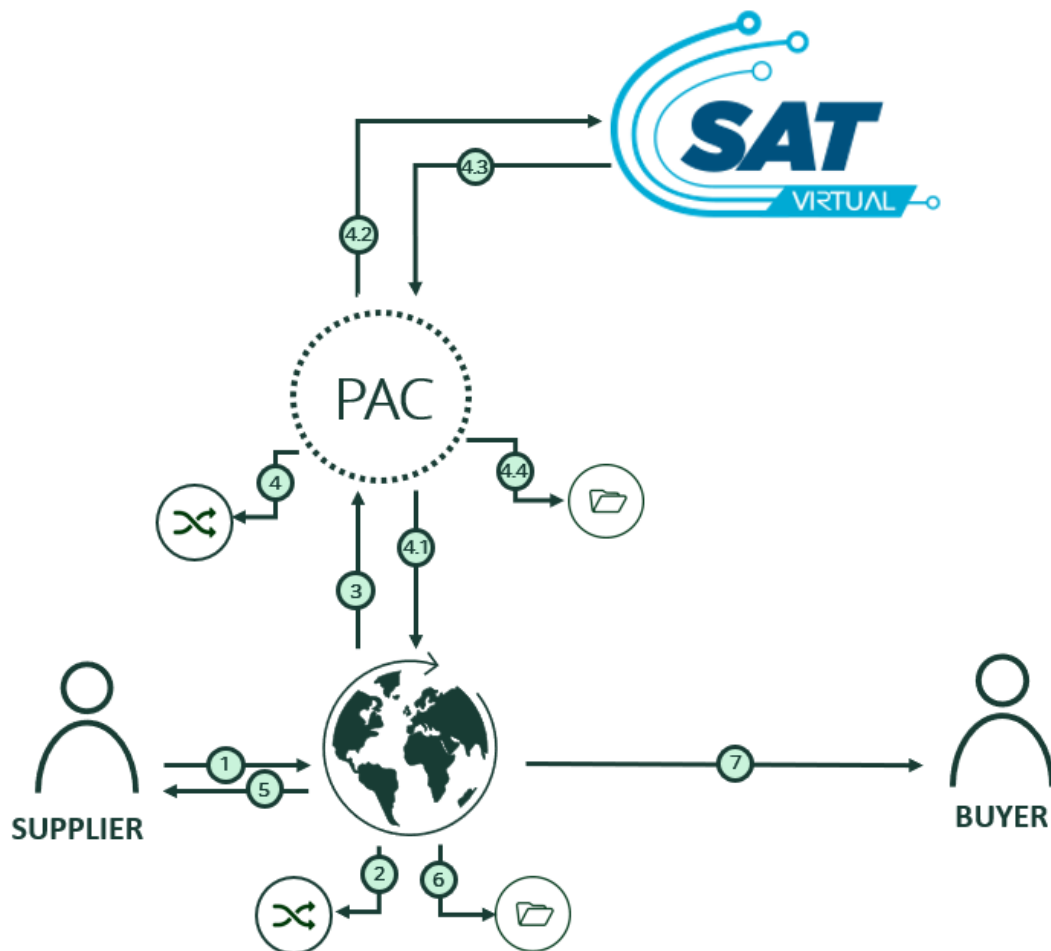


11. Country-specific processing

This section outlines how the Pagero General eInvoicing process has been adapted to the local requirements to ensure compliant local processing.

In Guatemala, Pagero partners up with Megaprint Sociedad Anonima, which acts as a PAC accredited by the Tax Authority SAT.

11.1. Document issuance (AR) with Pagero



1. The supplier sends DTE data to Pagero in agreed format
2. Pagero will:
 - 2.1. Validate the data
 - 2.2. Enrich the data
 - 2.3. Convert the received format into the local mandatory XML
 - 2.4. Apply digital signature with supplier's certificate
3. Pagero will send the DTE to PAC for clearance,
4. PAC will validate the DTE applying UUID and advanced e-signature with PAC's digital certificate
 - 4.1. PAC will send the cleared DTE to Pagero
 - 4.2. PAC will at the same time send the cleared DTE to SAT for Tax validation
 - 4.3. SAT will run technical validations to the DTE and will send a response message to PAC immediately. If positive, the DTE obtains tax validity
 - 4.4. PAC must archive the response message along with the cleared DTE
5. Pagero will send the cleared DTE to the supplier
6. Pagero will archive the cleared DTE along with the buyer business file
7. Pagero will send the cleared DTE in XML format along with a human readable format to the buyer

11.2. Document reception (AP) with Pagero



1. Supplier sends the cleared DTE to Pagero

2. Pagero will:
 - 2.1. Validate the data
 - 2.2. Enrich the data
 - 2.3. Convert the DTE into buyer's format
3. Pagero will archive all the relevant documents
4. Pagero will send the DTE along with the buyer business file to the buyer
5. Buyer can verify the DTE validity manually on the "Agencia Virtual" web portal owned by SAT



12. Closing statements

12.1. Confidentiality

This General invoice processing description of Pagero Online, our Country Compliance Reports, and other documents provided by Pagero are of confidential nature and are only intended for and may only be used by Pagero's Customers, their employees or other authorized recipients for the purpose or purposes specified and agreed to between the parties. Descriptions, reports, and documentation may not – neither in full nor in parts – be copied or otherwise distributed to third parties without Pagero's prior written consent.

12.2. Disclaimer

In order to establish a relationship based on trust and transparency with our Customers, Pagero provides its General e-Invoice and eArchiving processing descriptions of Pagero Online as well as Pagero's Country Compliance Reports. These documents are intended to enable our Customers and their tax advisors to assess how Pagero has interpreted the relevant legislation and implemented it in our processes in order to support our Customers to fulfil their legal obligations.

We would like to remind our Customers that, according to tax and accounting regulations, the outsourcing of any process to third parties (such as issuance, compiling, processing, receipt, or archiving of e-Invoices), will not lead to a shift of liability, the liability will remain with the Customer. Accordingly, the taxable person always remains responsible towards the local authorities for ensuring their e-Invoice compliance, and for fulfilling accounting and reporting requirements. We want to emphasise this, in the light of that there can be potentially conflicting regulations on regional, national, or international levels.

Pagero endeavours to only include and provide accurate and up to date information. However, Pagero makes no guarantees as to the accuracy of any statement, information or advice provided by Pagero, whether in writing or verbally. The Customer must make an informed decision about whether to adhere to and follow such recommendations or not. The final decision and responsibility regarding tax, accounting, and reporting issues rest with the Customer.



Revision history

Date	What has changed
2021-10-25	Document created
2021-12-09	Section 2: Resolucion-SAT-DSI-1218-2021 and SAT-DSI-1240-2021 added Section 3: According to Res.-SAT-DSI-1240-2021 all taxpayers under the general VAT regime will have to join the FEL regime by July 2022
2022-12-13	Periodic Update